



Appeal Decision

Site visit made on 14 August 2026

by MG Garrard LLB (Hons), PGDip.LP, Solicitor

an Inspector appointed by the Secretary of State

Decision date: 18 September 2026

Appeal Ref: 6010196

Land at OS 7540 6621 Stourport Road, Great Witley WR6 6JP

- The appeal is made under section 78 of the Town and Country Planning Act 1990 (as amended) against a refusal to grant planning permission.
 - The appeal is made by Mr Karl Lockley against the decision of Malvern Hills District Council.
 - The application Ref is M/25/01626/FUL.
 - The development proposed is 4no. dwellings and associated works.
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Decision

1. The appeal is dismissed.

Preliminary Matters

2. The planning application form used a description of the site location rather than a full site address. The appeal form included the grid reference and postcode, so I have included those for clarity in the heading above.
3. Since the application was determined, the Council adopted the South Worcestershire Development Plan Review 2021-2041 (Adopted March 2026) (SWDPR). This superseded the policies against which the appeal proposal had originally been determined. The main parties addressed this in their appeal statements. I have taken the updated policies into account in making my decision.
4. Upon adoption of the SWDPR the Council was able to demonstrate a five-year supply of deliverable housing with the required buffer. During the appeal, the Council provided evidence about its housing land supply, and the appellant has been given the opportunity to comment on this during the appeal.
5. During the course of the appeal, a revised National Planning Policy Framework (the Framework) was published on 17 August 2026. The main parties were given an opportunity to comment on the implications of the revised Framework for the appeal, and I have taken those comments into account in reaching my decision. References to the Framework in my decision are to the August 2026 version.
6. The Council's second reason for refusal related to the absence of a completed planning obligation to secure mitigation including affordable housing and provision for maintenance of public open space. During the appeal, an executed planning obligation to which the Council is a party dated 30 June 2026 was submitted. The Council confirmed that the executed obligation would address its concerns and I have no reason to disagree. Accordingly, I am satisfied that the proposal makes appropriate provision in these respects and that the second reason for refusal has been overcome.

7. The Council's third reason for refusal arose from concerns regarding visibility, pedestrian connectivity, sustainability, and gradients. The second reason for refusal also referred to the need for highway-related contributions, although neither the decision notice nor the officer report explained what mitigation was required. Additional transport information submitted with the appeal has been considered by the highway authority, which advised that the remaining matters can be addressed by conditions. Therefore, this matter has been resolved.
8. Updated ecological information was submitted during the appeal and the Council's ecologist is satisfied that the statutory biodiversity gain objective can be secured through conditions. The planning obligation secures the necessary biodiversity monitoring contribution and requires submission of a Habitat Management and Monitoring Plan. Consequently, this matter has also been resolved.
9. Accordingly, although these matters formed part of the Council's reasons for refusal, they no longer represent substantive areas of dispute between the parties and do not weigh against the proposal, so I have not treated them as main issues.
10. In considering these submissions, I have been mindful that the appeal process should not be used to evolve a scheme. Having regard to the judgment in *Holborn Studios Ltd*¹, I consider that the additional material provides clarification and mechanisms to secure matters relevant to the development, rather than materially altering the proposal. As the material was submitted with the appeal, the Council has had the opportunity to comment on it, and I am satisfied that no interested party has been prejudiced.

Main Issues

11. The main issues are:

- Whether the proposed development would make effective and efficient use of the land, having regard to the character of the area; and
- Whether the proposal could provide satisfactory drainage arrangements.

Reasons

Background

12. The appeal site comprises part of an agricultural field fronting Stourport Road, on the edge of Great Witley. The settlement boundary is across the road from the appeal site.
13. Great Witley is identified in the development plan settlement hierarchy as a village with a range of services and facilities. The appeal site is therefore reasonably accessible to the village's services notwithstanding its location outside the settlement boundary. These circumstances were also recognised when permission in principle (PiP)² was granted on appeal for up to nine dwellings on the appeal site.
14. The Council's refusal reason refers to former Policy SWDP 2 of the South Worcestershire Development Plan, now replaced by Policy SWDPR 03 of the SWDPR, which sets out the development plan's spatial development strategy and

¹ *Holborn Studios Ltd v The Council of the London Borough of Hackney* [2017] EWHC 2823 (Admin)

² APP/J1860/W/23/3330800 – decision date 4 June 2024

settlement hierarchy. As it is outside the defined settlement boundary the appeal site is in the open countryside for planning purposes, where Policy SWDPR 03 states that development will be strictly controlled. However, the extant PiP establishes the principle of residential development on the site.

Effective and efficient use of land

15. The appeal site is undeveloped and forms a break in built form between Turnpike Close and dwellings beyond an access track from Stourport Road. There is also development opposite the site, and a large new housing scheme is being built further along the opposite side of Stourport Road. The appeal proposes four relatively large, detached dwellings in substantial individual plots. Together with the internal access and other supporting infrastructure, this would produce a loose layout with appreciable distances between the buildings.
16. Consideration of the extant PiP was limited to location, land use, and the amount of development. It does not mean that nine dwellings must be provided, nor what would be an appropriate density or layout. Nevertheless, it establishes that the site is capable in principle of accommodating up to nine dwellings, subject to acceptable technical details.
17. The main parties use different density measures, with the Council referring both to 4 dwellings per hectare (dph) and 4 dwellings per acre (dpa), while the appellant refers to 4 dpa. As the appellant's figure is supported by the submitted evidence, I have used that density calculation in my assessment.
18. Policy SWDPR 16 of the SWDPR requires housing development to make the most effective and efficient use of land and that density should enhance the character and quality of the local area while being commensurate with scheme viability and infrastructure capacity. Greater densities are expected in more accessible locations. For villages, the policy identifies 30 dph as the minimum net density for allocated sites, subject to considerations including character, accessibility, and other site-specific constraints. Windfall development is to be assessed against the density criteria relevant to its locality and the character of its built and natural environment.
19. As the appeal site is not an allocated housing site, the proposal must be assessed in its particular context. Nevertheless, the policy provides a clear indication of the density regarded as making effective use of land in villages. The proposal's density as set out by the appellant would fall significantly below that benchmark.
20. The appeal site's prominent position at the countryside edge and its sloping topography support concentrating development on the lower, flatter part of the site. The surrounding area is characterised by a varied mix of dwellings, plot sizes, and densities. Development at Turnpike Close is arranged more closely, whereas properties on the opposite side of Stourport Road occupy larger and more varied plots. Consequently, whilst the proposal's spacious layout would not appear out of keeping with the character of the area, the local context does not demonstrate that the site's constraints require development at the very low density proposed. Nor does it suggest that a somewhat denser form of development on the lower part of the appeal site would necessarily be unacceptable in character and appearance terms.

21. Policy L3 of the Framework requires development proposals to make efficient use of land, taking account of the identified need for different types of housing, local market conditions, infrastructure, connectivity, and the importance of securing well-designed, attractive, and healthy places.
22. The Council's Strategic Housing Market Assessment identifies a need for smaller affordable dwellings, whereas the proposal comprises a limited number of comparatively large homes. The site's topography, infrastructure requirements, and local character do not justify development at such a low density, nor do they indicate that a more efficient use of the appeal site could not be achieved whilst delivering an attractive, well-designed development.
23. Policy L3:2.b. of the Framework seeks to achieve appropriate densities and applies to land outside settlements, and to land at the edge of built-up areas which is allocated or has permission for development and so will form part of the settlement. The appeal site lies adjacent to the settlement boundary. Although the PiP does not authorise development until technical details consent is granted, it establishes permission in principle for residential development. Therefore, in accordance with Policy L3:2b. the proposal's development footprint should make the best use of the site's development potential. Policy L3:4. indicates that development proposals that do not make efficient use of land in accordance with paragraph 2 of the policy should be refused.
24. Drawing these matters together, the proposal's low density has not been sufficiently justified by the appeal site's context or constraints. It would not make the best use of the land where the principle of residential development has already been established. Therefore, it would conflict with Policy L3 of the Framework and Policy SWDPR 16 of the SWDPR, which seeks to secure the effective and efficient use of land while ensuring that density responds appropriately to local character, accessibility, and infrastructure capacity.

Drainage

25. The Council's concern in determining the proposal arose primarily from the absence of sufficient drainage information, including infiltration testing and evidence regarding foul drainage capacity. The appellant submitted a revised Water Management Statement with the appeal, including infiltration testing and a detailed drainage strategy. This indicates that surface water can largely be managed through infiltration, supported by attenuation storage designed to accommodate the 1-in-100 year storm event plus a climate change allowance, and that foul drainage can connect to the existing network. The Council's drainage engineer no longer disputes the feasibility of infiltration drainage, instead expressing a preference for additional Sustainable Drainage Systems (SuDS) features.
26. Although the Council's drainage engineer considers there is scope for additional SuDS features, the evidence before me indicates that surface water could be managed in line with the SuDS hierarchy by infiltration with any overflow in extreme events discharging to highway drainage. This would control run-off rates and volumes and would not increase flood risk on or off the site. I am therefore satisfied that the proposal would manage site drainage and run-off in a sustainable and co-ordinated way. If permission were granted, further details of a satisfactory drainage scheme could be required by appropriate conditions.

27. I therefore conclude that the proposal would provide satisfactory drainage arrangements. Accordingly, it would comply with Policy SWDPR 39 insofar as it expects all development proposals (as appropriate to their nature and scale) to, amongst other things, demonstrate that site drainage and run off will be managed in a sustainable and co-ordinated way, and to manage surface water through SuDS.

Other Matters

28. The appellant contends no opportunity was given to provide further information in respect of some matters before the application was determined. However, I must determine the appeal on the basis of the evidence now before me. That includes additional information submitted during the appeal which has enabled some of the Council's concerns to be resolved.
29. The Council accepts that, in accordance with Annex D paragraph 9 of the Framework, it is required to demonstrate a five-year supply of deliverable housing sites, including a 20% buffer. It has confirmed that the South Worcestershire Councils' Five Year Housing Land Supply Report, published in June 2026, demonstrates a 5.48-years housing land supply.

Planning Balance

30. The proposal conflicts with Policy L3: 4. of the Framework which states that development proposals which do not make efficient use of land in accordance with paragraph 2 of the policy should be refused. I have also found that the proposal would not make effective and efficient use of the site and would therefore conflict with Policy SWDPR 16.
31. Policy HO7 of the Framework states that substantial weight should be given to the benefits of providing homes which will contribute to meeting the evidenced accommodation needs of the community. The Council's evidence indicates a particular need for smaller homes which is not addressed by the proposal. Consequently, whilst the proposal would contribute towards housing delivery, this limits the weight I attach to that benefit.
32. I acknowledge that benefits would arise through construction activity and spending by future occupiers supporting local shops, services, and businesses. The proposal would also make provision for affordable housing and would deliver biodiversity net gain. These benefits weigh moderately in favour of the proposal.
33. Drawing these matters together, I find that the benefits of approving the proposal are substantially outweighed by the adverse effects arising from the failure to make efficient use of the appeal site and the conflict with the development plan.

Conclusion

34. The proposal does not accord with the development plan taken as a whole and the material considerations in this case are not sufficient to indicate that a decision should be made other than in accordance with the development plan. Accordingly, the appeal is dismissed.

MG Garrard

INSPECTOR